# Quarterly report: Q1 2026

Australia's merger regime, 1 January 2026 – 31 March 2026

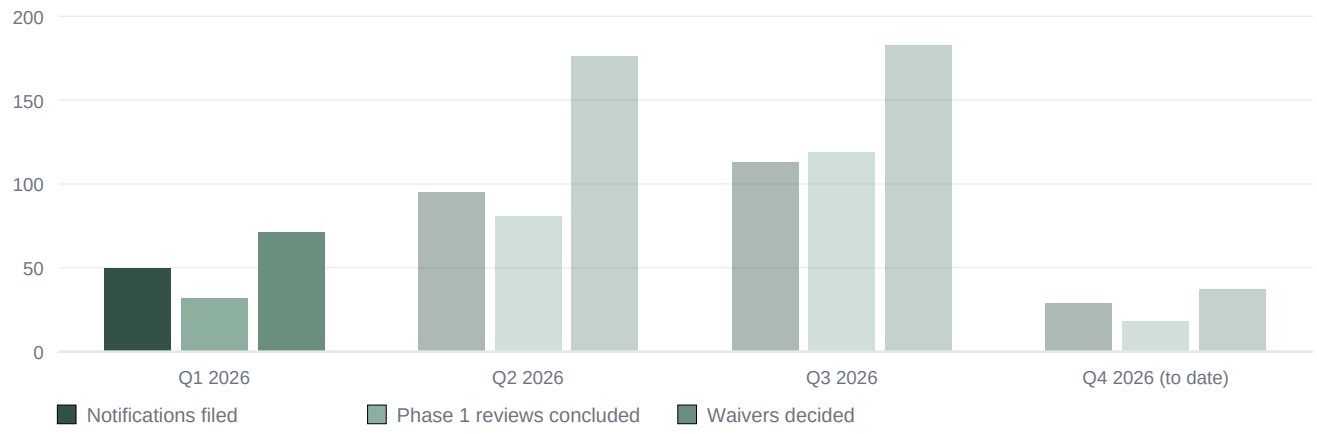
| NOTIFICATIONS FILED | WAIVERS DECIDED | PHASE 1 MEDIAN | WAIVER MEDIAN |
|---|---|---|---|
| **50** | **71** | **17** business days | **11** business days |

THE QUARTER IN BRIEF

- 50 notifications filed, and 71 waiver applications decided.
- Phase 1 reviews concluded in a median 17 business days; waivers in 11.
- 92% of waivers were granted and 94% of phase 1 reviews ended in approval.
- 2 matters referred to phase 2.

## Volume by quarter

Waivers reach the ACCC's register only once decided, so they are counted when decided




### Waivers

CLEARANCE RATE

**92%**

65 of 71 approved

| | |
|---|---|
| Average when granted | **11 business days** |
| Average when refused | **10.7 business days** |
| Refused | **6** |

6 of 6 refused waivers have since been re-filed as a notification.

### Notifications – phase 1

CLEARANCE RATE

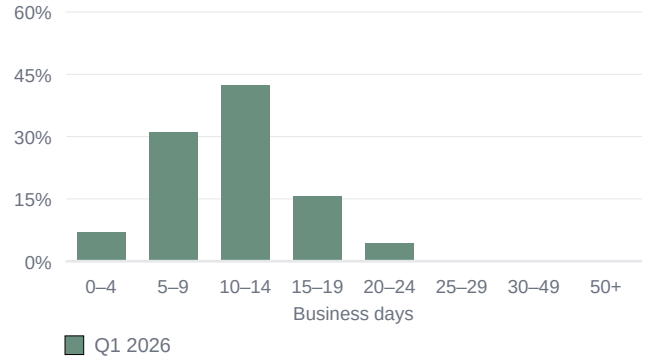
**94%**

30 of 32 approved

| | |
|---|---|
| Average when approved | **17.9 business days** |
| Average when referred | **44.5 business days** |
| Referred to phase 2 | **2** |

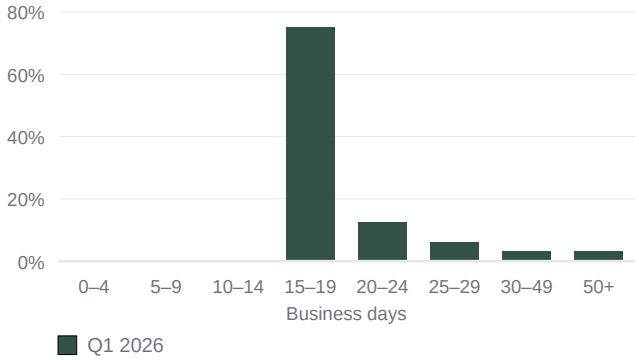
## Waiver timing

Share of decisions by business days taken – median 11 business days, 90% within 17 business days




## Phase 1 timing

Share of decisions by business days taken – median 17 business days, 90% within 26 business days




## Where the deals were

Notifications filed and waivers decided, by ANZSIC division

| | |
|---|---|
| Professional, Scientific and Technical Services | 37 |
| Manufacturing | 26 |
| Information Media and Telecommunications | 23 |
| Financial and Insurance Services | 21 |
| Wholesale Trade | 13 |

**50%** involved an overseas-registered acquirer or target (61 of 121). A party counts when the register gives it a foreign registration number, or no ABN or ACN and an overseas legal form (Inc, GmbH, S.p.A.…); unclear cases are left out, so this is a floor.

## Beyond phase 1

Phase 2 referrals and outcomes, public benefit applications, and Tribunal and court reviews

| | | |
|---|---|---|
| 21 Jan 2026 | **Referred to phase 2** | Ampol – EG Australia |
| 29 Jan 2026 | **Referred to phase 2** | Coles – supermarket and liquor site in Kalgoorlie, WA |

## Notes

Decisions count in the quarter they were made; notifications in the quarter they were filed. Waivers reach the ACCC's register only once decided, so they are counted when decided. Phase 1 timing runs from notification to the phase 1 determination, or to the referral for a matter sent to phase 2. All durations are business days, as the statutory clocks count them.